UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Midcontinent Independent System Operator, Inc.	)	Docket ER27-25-000

JOINT PROTEST OF
THE IOWA OFFICE OF THE CONSUMER ADVOCATE,
THE CITIZENS UTILITY BOARD OF MICHIGAN,
THE CITIZENS UTILITY BOARD OF ILLINOIS,
THE CITIZENS UTILITY BOARD OF WISCONSIN,
THE CITIZENS UTILITY BOARD OF MINNESOTA
CITIZENS ACTION COALITION OF INDIANA,
MICHIGAN ATTORNEY GENERAL,
THE OFFICE OF THE ILLINOIS ATTORNEY GENERAL, AND
MINNESOTA DEPARTMENT OF COMMERCE

Pursuant to Rule 211 the Federal Energy Regulatory Commission's ("Commission") Rules of Practice and Procedure, 18 C.F.R. section 385.211 and the August 31, 2026 Combined Notice of Filings #1, the Iowa Office of Consumer Advocate, Citizens Utility Board of Michigan, Citizens Utility Board of Illinois, Citizens Utility Board of Wisconsin, Citizens Utility Board of Minnesota, Citizens Action Coalition of Indiana, the Michigan Attorney General, the Office of the Illinois Attorney General, and Minnesota Department of Commerce (collectively, the "Joint Protestors") respectfully submit this Joint Protest in the above-captioned proceeding.

JOINT PROTEST

The Joint Protestors submit this Joint Protest regarding the proposed tariff revisions filed by the Midcontinent Independent System Operator, Inc. ("MISO") regarding the Large Load

Additional Resource Study Process ("LARS Process") with the Commission in the above-captioned action.[1]

On October 2, 2026, MISO filed proposed revisions to its Open Access Transmission, Energy, and Operating Reserve Markets Tariff ("Tariff") to establish a LARS Process with supporting direct testimony prepared by Christina Drake, MISO Director, Generation Interconnection. In the Transmittal Letter, MISO asserts the filing is responsive to the Commission's concerns in its Show Cause Order in Docket No. EL26-70-000, including the finding MISO's existing Tariff may be unjust and unreasonable because it does not provide generator interconnection study procedures and services that account for the operational dynamics of serving electrically proximate large loads.[2]

In the Show Cause Order, the Commission found MISO's Tariff "appears to be unjust and unreasonable because it lacks adequate mechanisms to mitigate the risk of cost shifting among transmission customers, which may result in unjust and unreasonable rates for transmission service."[3] In the ruling, the Commission expressed concern about the lack of transparency regarding the assignment of costs, including Network Upgrades, necessary to provide transmission service to Eligible Customers or Large Load Customers on behalf of Large Loads. The Commission sought to ensure Eligible Customers bear the risk and are ultimately responsible for costs incurred to provide transmission service, including the cost of Network Upgrades.[4]

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[1] In the Show Cause Order discussed below, the Commission expressly "encourage[d] . . . state consumer advocates to submit comments explaining whether this information is sufficient and granular enough or to submit comments explaining precisely which additional information on transmission cost allocation may be needed to inform proper state-jurisdictional cost allocation." *Midcontinent Indep. Sys. Operator, Inc.*, 195 FERC ¶ 61,212 at P 70 (2026) ("Show Cause Order").

[2] Transmittal Letter at 3. The definition of electrically proximate large loads is in the Show Cause Order and set forth in this Protest, below. *See* footnote 23.

[3] Show Cause Order at P 66.

[4] *Id.* at PP 70-77.

I. The Commission Should Not Allow the Grandfathering of Approximately 30 Gigawatts of Load

MISO is proposing to fully exempt or "grandfather" any Large Load with a service commencement date on or prior to December 4, 2026, from all requirements of proposed Section 37A, or more generally, the Large Load Interconnection Reliability Requirements.[5] MISO is also proposing to partially exempt a Large Load or a portion of a Large Load that does not have a Service Commencement Date prior to December 4, 2026, but that meets the MTEP/EPR Condition and the ramp and ride-through requirements set forth in Section 37A.6 through 37A.7.[6] In total, MISO is proposing to fully or partially exempt approximately 30 gigawatts of existing load from the Large Load Interconnection Reliability Requirements.[7] The Joint Protestors filed a Protest in Docket No. ER26-3650-000 on September 18, 2026, protesting MISO's proposed grandfathering exemptions.[8] The Joint Protestors maintain the proposed grandfathering exemptions under MISO's Section 205 filings, including the LARS Process, are not just and reasonable. If the grandfathering exemptions are carried forward in this filing and to the series of future Federal Power Act Section 205 filings MISO intends to make in response to the Show Cause Order, the exemptions could deprive electric consumers of the cost-shifting and other consumer protections MISO has been directed to address in the Show Cause Order.

[5] Midcontinent Indep. Sys. Operator, Inc., Interconnection of Reliability Requirements for Large Loads, Docket No. ER26-3650 at 13- 14 (Aug. 28, 2026).
[6] *Id.*
[7] Midcontinent Indep. Sys. Operator, Large Load Working Group, *Large Load Interconnection Reliability Requirements (LLWG)* at 8 (Aug. 12, 2026), https://www.misoenergy.org/events/2026/large-load-working-group-llwg---august-12-2026/ (last visited on Sept. 16, 2026).
[8] Joint Protest of the Iowa Office of Consumer Advocate et al., Midcontinent Indep. Sys. Operator, Inc., Docket No. ER26-3650-000 at 3 (filed Sept. 18, 2026).

II. Cost-Shifting Should be Addressed Across MISO's Section 205 Filings and in the Section 206 Filing

MISO's LARS Process does not address the Commission's concerns regarding cost-shifting expressed in the Show Cause Order. In her direct testimony, MISO Witness Drake notes "[t]he cost shifting issues raised in the Commission's Show Cause Order will be addressed in future filings that MISO plans to submit by November 16."[9] The Commission's concerns regarding cost-shifting are an integral part of the Show-Cause Order. If the Commission approves MISO's proposed Tariff changes in MISO's Section 205 filings without considering cost-shifting and the collective impact of all of MISO's Section 205 filings as a whole, electric customers may be deprived of the cost-shifting and other consumer protections the Commission directed MISO to address in the Show Cause Order. The Commission should require MISO to address cost-shifting in all of its Section 205 filings and in all of its direct responses to the Section 206 Show Cause Order. The Joint Protestors should be permitted to address the cost-shifting impacts, transparency issues, and other consumer protection issues raised in MISO's Section 205 filings as a whole, collectively, in the Section 206 Show Cause Docket.[10]

[9] Tab C. MISO Witness Drake Direct Testimony at 41:7-8.

[10] Consumer advocates have demonstrated a need for their offices to have a more meaningful, active, and visible role in MISO. *See* Docket No. AD25-7, Statement of Jennifer Easler on behalf of Iowa OCA at 7 (May 16, 2025); *see also id*. at 7-8 (urging "the Commission to consider changes to give Consumer Advocates a stronger voice at MISO and its planning process so the interests of those who pay the bills are heard."). MISO's failure to address the cost-impact components of the Show Cause Order serves as an acute example that corroborates that need. In a future submission, Joint Protestors may ask FERC to take action under Section 206 to address that need by (i) finding that the lack of funding provisions for consumer advocate offices renders MISO's Tariff unjust and unreasonable and unduly discriminatory, and (ii) establishing a mechanism in MISO's Tariff to fund a consumer advocate organization (similar to the CAPS organization in PJM Interconnection, L.L.C.).

III. The LARS Process Lacks Transparency on Costs and Allows Cost-Shifting of Network Upgrades

MISO proposes to add a new GIP Section 3.12.4 to describe the studies that will take place for LARS generation projects.[11] With respect to mitigations or network upgrades to address violations observed during the studies, MISO proposes the following language:

> Mitigations developed to address violations observed in only the transmission studies shall be assigned Baseline Reliability Projects (BRP) or Other project types. Mitigations developed to address common violations observed in both the transmission study and the generation study shall be assigned Baseline Reliability Projects (BRP) or Other project types. Mitigations developed to address violations observed only in the generation study shall be assigned to the LARS Interconnection Customer under the Generator Interconnection Project (GIP) project type.[12]

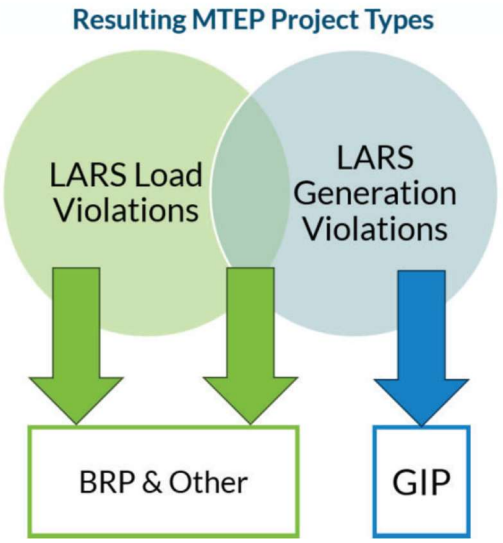
In the Transmittal Letter, MISO explains the above language:

> addresses how mitigations developed to address violations will be assigned depending on where they were observed. If they were only observed in the load side study of LARS, then they will be assigned BRPs and Other project types. If mitigations were developed to address violations observed in both the generation and load studies, then they will be assigned BRPs and Other project types. And finally, any mitigations developed to address violations observed that were caused *only* in the generation study will be assigned to the Interconnection Customer under the Generator Interconnection Project ("GIP") project type.[13]

In her direct testimony, MISO Witness Drake further explains the proposed Tariff change:

> **Q. BECAUSE LARS INVOLVES GENERATION/LOAD PAIRS, HOW ARE VIOLATIONS AND THEIR ASSOCIATED MITIGATION COSTS ASSIGNED?**
>
> A. The generator will be responsible for any constraints unique to the generation study and the load will be responsible for any constraints unique to the load study. In the event there is an overlap in violations, then the costs will be assigned to the load. Thus, projects developed to mitigate violations observed only in the LARS generator study will be assigned to the LARS Interconnection Customer under the Generator Interconnection Project (depicted as GIP below) project type. In the event that any Planning Criteria violations, such as thermal or voltage overloads,

[11] Transmittal Letter at 31-32; Tab A, ATTACHMENT X, Generator Interconnection Procedures (GIP) 193.0.0.
[12] Transmittal Letter at 31-32; Tab A, ATTACHMENT X, Generator Interconnection Procedures (GIP) 193.0.0.
[13] Transmittal Letter at 32.

> are observed during the load-side study process including any common violations identified between the generation and load studies, mitigations will be developed and assigned BRP or Other project types as defined in Attachment FF.
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> As the diagram demonstrates above, in the event that there is a common issue between the load and generation, then the cost will be allocated for the BRP or Other project type. If a GIP defers or displaces a BRP, then the costs of the GIP up to the costs of the deferred or displaced BRP shall be allocated consistent with the cost allocation for the BRP.[14]

The LARS Process does not assign the cost of all network upgrades to the cost-causer. The LARS Process assigns the Interconnection Customer, the cost-causer, the cost of network upgrades to address violations observed in the generation study under the GIP project type. Unlike the violations observed only in the generation study, the LARS Process assigns the cost of network upgrades to address violations observed in the transmission studies and observed in both the transmission study and the generation study to Baseline Reliability ("BRP") or Other project types, which are allocated zonally. The LARS proposal does not adequately assign costs to the cost causers, and MISO has not yet fully developed a cost allocation proposal for LARS load and

[14] Tab C, MISO Witness Drake Direct Testimony at 27:14-28:7.

generation pairs. MISO indicates in its Transmittal Letter that any overallocation of upgrade costs will be "formalized in a future MTEP project," and will likely be allocated zonally across MISO's Transmission Pricing Zone.[15] This does not address whether costs are properly allocated to large loads. MISO's Tariff does not contain a transparent, cost-causation tracking framework to track the cost of the network upgrades, allowing the cost of the network upgrades to shift from direct assignment to the cost-causer to other ratepayers under zonal rates. Consistent with the Show Cause Order, the cost-causer, not other ratepayers, should be responsible for all network upgrades resulting from the Large Load. Proposals that allocate Large Load network upgrade costs to other customers zonally under the premise of the alleged benefits those customers receive are therefore irrelevant.

IV. The LARS Process Fails to Address the Commission's Show Cause Order's Requirement to be "Electrically Proximate"

MISO proposes LARS as load and generation pairs, interconnecting within the same Local Resource Zone (LRZ).[16] MISO LRZ's are physically large, with LRZ 1 spanning from Montana to Illinois.[17] In the Transmittal Letter, MISO explains that they chose the load and generation interconnection pair threshold at the LRZ to align with MISO's Resource Adequacy construct.[18] MISO Witness Christina Drake further details the choice around LRZ:

> **Q. HOW DOES LARS ADDRESS THE ELECTRICALLY PROXIMATE REQUIREMENT IN THE SHOW CAUSE ORDER?**
>
> A. MISO's LARS proposal provides the Tariff structure necessary to enable an Interconnection Customer to serve an electrically proximate load as the LARS Associated Load must be located within the same LRZ. MISO did not want to limit the pairing of generation with associated load to a

[15] Transmittal Letter at 13.
[16] Transmittal Letter at 10.
[17] Midcontinent Indep. Sys. Operator, FERC Electric Tariff, Attachment VV, Map of Local Resource Zone Boundaries (40.0.0) at 1 (effective Oct. 26, 2025), https://www.misoenergy.org/legal/tariff/ (last visited on Oct. 18, 2026).
[18] Tab C. MISO Witness Drake Direct Testimony at 40.

> specific number of substations because that would limit how MISO may optimize common solutions.[19]

MISO discusses how it could have structured its LARS proposal, by either "requiring the generation and LARS Associated Load to be located in the same Local Balancing Authority area or through requiring that the location of the Generating Facilities be within a specific number of substations of the LARS Associated Load."[20] MISO indicates that it chose neither of these structures, favoring LRZ as a boundary, due to its existing relationship with the Resource Adequacy metric, as well as "avoiding capacity import/capacity export limitations for the individual LRZ," and avoiding "price separation between the paired generation and LARS Associated Load."[21]

The Commission indicated preference for faster interconnection between large load and associated generation facilities in the Large Load ANOPR, as well as in the Commission's Show Cause Order. The Commission's Show Cause Order considers the benefits of studying new load and new generation together. Physical proximity between new load and new generation "when physically or electrically proximate, present system benefits and can help address the challenges posed by large load."[22] The Commission's Show Cause Order defines "electrically proximate large load" as "no more than two substations away from the generating facility" to govern the electrical distance in between related generation interconnection and large load.[23] The

[19] Tab C MISO Witness Drake Direct Testimony at 10.
[20] Transmittal Letter at 10.
[21] Tab C MISO Witness Drake Direct Testimony at 40:15-16, Transmittal Letter at 22.
[22] Show Cause Order at P 106.
[23] "[T]he term "electrically proximate large load" to mean a large load, as defined in this order, that is sufficiently electrically close to the interconnection customer's requested point of interconnection, such that the impact on the transmission system of the combination of the generating facility and the load, with the exception of the transmission facilities between the two, will be effectively the same as if they were located at the same substation (e.g., large load that is located no more than two substations away from the generating facility). We will consider proposed revisions to this definition that ensure it is appropriately tailored to MISO's transmission system." Show Cause Order at P 112.

Commission established this definition because electrical efficiencies created by narrow co-location of generation interconnection and new large load customers would harmonize siting of load and generation and minimize the need for Network Upgrades. [24]

MISO does not accomplish optimizing solutions between a LARS Associated Load and an Interconnection Customer's generation facility in accordance with the Commission's guidance in the Show Cause Order. Instead of proposing a compatible definition of "electrically proximate," MISO eschewed the lower network upgrade cost benefits of defining new large load and generation facilities in a constrained area in favor of the LRZ boundary for the LARS proposal.

Neither MISO Witness Drake nor the Transmittal Letter explain how the LARS proposal mitigates the electrical impact of LARS Associated Load and generation facilities being spaced potentially hundreds of miles apart, with load and generation being linked, despite being located potentially many states away. Furthering the logical challenge presented by MISO's use of LRZ as a boundary, MISO has Zones that range in size from LRZ 1, which spans from eastern Montana to northwest Illinois, to LRZ 5 which comprises less than half of the state of Missouri. MISO's LRZ proposal does not meaningfully engage with the Show Cause Order. MISO neither evaluates whether its LRZ boundaries are appropriate under the Order's terms nor supports its conclusion that they are.

The Joint Protestors respectfully urge the Commission to require MISO to establish a reasonable distance of "electrically proximate" that fully considers the factors laid out in the Commission's Show Cause Order. For example, MISO could allow for project-specific substations to not count against the "no more than two substations" count, such that a step-up

[24] Show Cause Order at P 113.

substation to transmission voltage and a step-down to distribution voltage are not part of the electrical distance or electrical impact.[25] However, as the proposal stands, MISO's LARS filing appears to be a departure from the defined electrical distance contemplated in the Show Cause Order.

V. MISO Fails to Explain How LARS is Not a Queue-Jumping Proposal

The Joint Protestors also take issue with MISO's classification of the LARS proposal and its intent to build off the success of the Expedited Resource Addition Study ("ERAS") and the Zero-Injection Generator Interconnection Agreement ("ZGIA") process, the latter of which is still pending at the Commission. The ERAS pathway allowed Generator Interconnection customers who have approval from their Retail Electric Rate Regulatory Authority ("RERRA") to seek an expedited pathway to a Generator Interconnection Agreement ("GIA"), circumventing the traditional DPP queue. The Joint Protestors are concerned that LARS, similar to ERAS, will enable queue jumping. MISO Witness Drake indicates that "MISO understands the concerns that LARS is enabling queue jumping," but does not believe that the LARS proposal contemplates queue jumping and maintains a size cap that prevents misuse of the process.[26]

MISO Witness Drake discusses the likely success of the LARS process from a planning standpoint, and how there could be strategic efficiencies between generator interconnection and load interconnection processes, "If MISO can identify a common solution that helps integrate both the load and generation into the system, then MISO can maximize the benefits of both processes and reduce integration costs."[27] The LARS study process only evaluates generator projects with executed GIAs. Any projects currently moving through the

[25] Show Cause Order at 67.
[26] Tab C, MISO Witness Drake Direct Testimony at 10.
[27] Tab C, MISO Witness Drake Direct Testimony at 6.

DPP Cycle will not be modeled into the LARS study models.[28] In effect, any LARS project will be studied before the DPP projects that have waited through multiple phases of study. The omission of DPP projects combined with an electrically proximate definition that can be up to nearly a thousand miles creates a process that enables queue jumping for LARS Associated Generators.

MISO's testimony supposes that queue jumping only becomes a problem when the jumping is unrestricted and constant. Under FPA Section 205, MISO bears the burden of proof that LARS is just and reasonable, and not unduly preferential. MISO has not adequately explained how LARS generation projects are not receiving undue preference over other generation projects in the DPP cycles ahead of them. The Show Cause Order explicitly asks MISO to show, in their FPA Section 205 filing, how they will "avoid disrupting existing commercial arrangements."[29] MISO has not shown how the LARS filing will avoid such disruptions to the existing DPP queue, and will avoid being unjust and unreasonable, or unduly discriminatory to Generator Interconnection Customers currently in the queue.

CONCLUSION

WHEREFORE, the Joint Protestors pray the Commission reject MISO's proposed Tariff grandfathering exemptions to ensure Large Load customers bear the cost and risk of all costs caused by the Large Load customer, direct MISO to address cost-shifting in its Section 205 filings and in its direct response to the Section 206 filing, allow the Joint Protestors to address the cost-shifting impacts, transparency issues, and other consumer protection issues raised in MISO's Section 205 filings as a whole, collectively, in the Section 206 Show Cause Docket, reject MISO's proposed Tariff provisions under GIP Section 3.12.4 that shift the cost of network

[28] Tab C, MISO Witness Drake Direct Testimony at 28.
[29] Show Cause Order at P 36.

upgrades to address violations observed in the transmission studies and observed in both the transmission study and the generation study to Baseline Reliability or Other project types, reject MISO's LARS definition for "electrically proximate" to mean across an LRZ, reject MISO's provisions that allow queue jumping around the standard DPP process, and require MISO to ensure Large Load customers bear the cost and risk of all costs caused by the Large Load customer, and for any additional relief Commission deems appropriate under the circumstances.

Respectfully submitted,

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For the Citizens Utility Board of Minnesota

Dated: October 23, 2026

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon each person designated on the official service list compiled by the Secretary in this proceeding.

Dated at this 23rd day of October, 2026.

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